

San Ramon (2004) 120 Cal.App.4th 1141; *Van Gundy v. Camelot Resorts, Inc.* (1983) 152 Cal.App.3d Supp. 29.)

13. S-CV-0057432 Galvez, Peter v. Elias, Shelby

Defendant is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Set Aside Entry of Default

Defendant Capitol City Real Estate, Inc. (“Capitol City”) moves to set aside the May 18, 2026 entry of default against it pursuant to Code of Civil Procedure section 473(b). Plaintiff opposes the motion.

A motion to set aside default “shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted[.]” (Code Civ. Proc., § 473, subd. (b).) Here, Capitol City did not provide any proposed responsive pleading with its moving papers. Rather than deny the motion outright due to this procedural deficiency, the court on its own motion continues this motion to **September 8, 2026 at 8:30 a.m. in Department 32**. Defendant Capitol City is directed to submit a proposed responsive pleading by August 21, 2026. Defendant Capitol City shall also file and serve a notice of continued hearing and file a proof of service by August 21, 2026. No additional briefing is permitted. The court intends to reach the substance of the motion at the continued hearing.

14. T-CV-0002823 In Re the Petition of No. Tahoe Pub. Utilities Dist.

Petition for Leave to File a Late Government Claim Pursuant to Government Code §946.6

Background

Petitioner alleges on July 18, 2024, a sewer main owned by petitioner was punctured underneath North Lake Boulevard in Carnelian Bay, California. Petitioner alleges the puncture was caused by a California Department of Transportation’s (Caltrans) contractor who was performing excavation activities in connection with a Caltrans project. Petitioner filed government claim alleging damages related to that puncture on July 18, 2025. (Opp’n at 2.)

Legal Standard

A suit for money or damages against a California public entity may not be brought “until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board . . .” (Gov. Code, § 945.4.) A claim for injury to real property must be presented within one year of the